

INTERNATIONAL RELATIONS



INDIA-PAKISTAN - 2

MODULE - 16

POLITICAL & STRATEGIC

REVOCATION OF ARTICLE 370 AND 35A

1 In 1927 the Maharaja of Kashmir, Hari Singh, on the request of powerful Kashmiri Hindus, passed the law to stop the influx of people from the northern state of Punjab into the state.

2 It's part of Article 370, the constitutional provision that granted Kashmir special status within India.

3 On 5 August 2019, the Government of India revoked the special status, or limited autonomy, granted under Article 370 of the Indian Constitution to Jammu and Kashmir



AREAS OF CONTENTION

POLITICAL & STRATEGIC

IMPACT OF THE DECISION

- 1 'Outsiders' would be allowed to purchase land and settle in J&K, which could lead to a demographic change.
- 2 If the demography of Kashmir changes substantially, it could nullify the basic condition for a possible future plebiscite.
- 3 It will dilute Muslim majority in Kashmir.
- 4 The removal of J&K's special status has led to granting of Kashmiri citizenship to around 150,000 Hindu refugees from Pakistan.



PAKISTAN'S RESPONSE

1 In response to the scrapping and under China's pressure, the \$62 billion China-Pakistan Economic Corridor (CPEC) was decided to run through the Gilgit-Baltistan region and Gilgit-Baltistan was to be mainstreamed as its "fifth province"

2 If Pakistan wishes to resist India, it can either escalate through direct military action or infiltrate jihadis to further increase the ongoing militancy.

3 But given India's security preparations and Pakistan's weak economy, it is not a viable option for Pakistan

4 Hence, Pakistan decided to mount a diplomatic campaign against India, downgrading ties and speaking against India on international platforms like the United Nations and Organisation of Islamic Cooperation (OIC)



PAKISTAN'S REDUCED SUPPORT

1 UNITED STATES

1 Pakistan appealed to international community including the US to put pressure on India to reverse its decision to abrogate special status to Jammu and Kashmir.

2 US State Department spokesperson said there was no change in the country's policy on Kashmir.

3 The US called for restraint and appealed to both India and Pakistan to maintain calm in the region.

4 President Trump referred to Kashmir as a bilateral issue between India and Pakistan.



PAKISTAN'S REDUCED SUPPORT

2 CHINA

1 China said the decision undermined China's sovereignty. But, its response was limited to Ladakh being made a Union Territory.

2 On a meeting between Pakistan and Chinese leaders, China issued a statement saying, "The Kashmir issue is a dispute left from the colonial history."

3 It should be properly and peacefully resolved based on the UN Charter, relevant UN Security Council resolutions and bilateral agreement."

4 China formalized its complete disregard for Pakistan's Kashmir position by lifting its veto against JeM chief Masood Azar being designated as a global terrorist at the United Nations

CHINA

"China is seriously concerned about the current situation in Kashmir."

"The parties concerned should exercise restraint and act with caution, especially to avoid actions that unilaterally change the status quo and exacerbate the tension."

PAKISTAN'S REDUCED SUPPORT

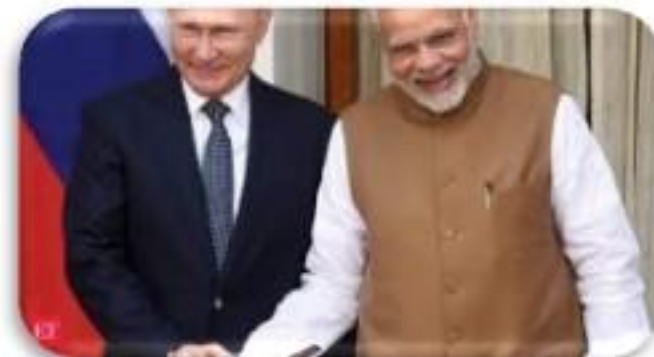
3 TALIBAN

1 Taliban responded with a statement saying Afghanistan cannot be turned into a theatre of competition at the behest of Pakistan.

2 Its spokesperson said, "Linking the issue of Kashmir with that of Afghanistan will not aid in improving the crisis at hand because the issue of Afghanistan is not related."

4 RUSSIA

Russian foreign ministry said, "the change in the status of the state of Jammu & Kashmir and its division into two union territories, are carried out within framework of the Constitution of the Republic of India."



PAKISTAN'S REDUCED SUPPORT

5

OIC

The biggest failure for Pakistan came from the OIC

1

The OIC talked raised concerns about "gross human rights violations" in Jammu and Kashmir

2

But on the revocation, members like UAE, Saudi Arabia and Turkey have called for bilateral talks between India and Pakistan for settlement of Kashmir issue.

3

UAE termed the revocation as "an internal matter of India".

4

India has deepened its economic and strategic ties with all OIC members. The OIC members value India more for economic engagement and strategic partnership.



GEOPOLITICS

i SIR CREEK DISPUTE

- 1 Sir Creek is a 96 km tidal estuary on the border of India and Pakistan which opens into the Arabian Sea.
- 2 It is a marshy wetland rich in oil and gas. Pakistan claims Sir Creek defined by a 'green line'.
- 3 This would mean a loss of 250 sq. miles of Exclusive Economic Zone for India.

IMPORTANCE FOR INDIA

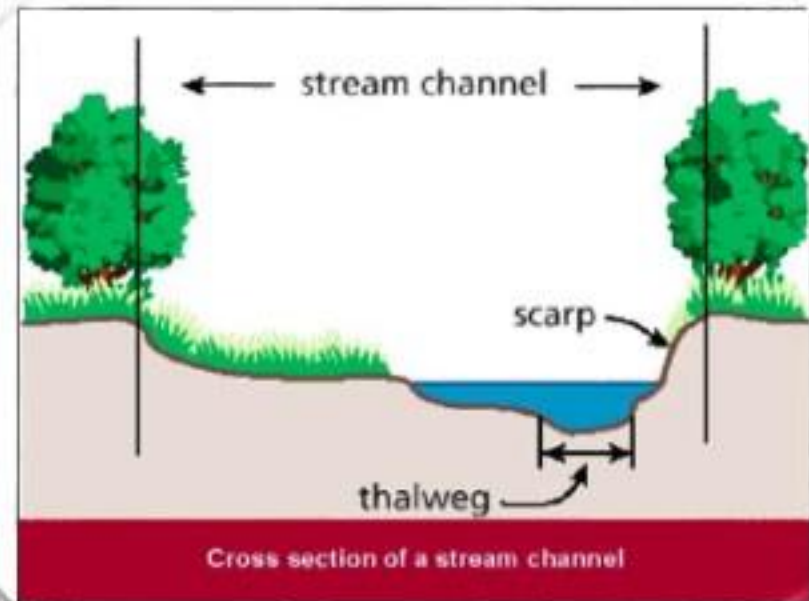
- 1 Sir Creek assume importance because of the prospect of finding petroleum deposits, and the presence of fish in the continental shelf, off the coast of Rann.
- 2 The area of the Exclusive Economic Zone (EEZ) will change by hundreds of square kilometres, with the change in boundary in Sir Creek.
- 3 It is this economic aspect of the EEZ that makes the Sir Creek dispute significant.



GEOPOLITICS

MARITIME DISPUTE

- 1 According to India line should run through the middle of the Creek as mentioned in the Thalweg Doctrine in International Law, according to which the river boundaries between states are divided by the mid channel.
- 2 Pakistan does not agree, because it says the Thalweg Doctrine is only applicable to water bodies that are navigable.
- 3 India maintains that, even if the Creek is navigable only during high tides, it is still navigable and in reality fishing boats are using the Sir Creek to go out to the sea
- 4 India fears that if it agrees to mediation in Sir Creek, there will be pressure on India to agree for international arbitration in solving other issues, like most importantly, Kashmir.



GEOPOLITICS

INDIA'S CONCERNS

Sir Creek presents several challenges for India.

- 1 Lack of proper maritime boundary leads to crossing of fishermen.
- 2 The route is being used to smuggle drugs, arms and petroleum products to India.
- 3 The 26\11 attacks in India were conducted using this route. to India.
- 4 The present problem between India and Pakistan arises from their differing interpretations of the boundary line dividing the Sir Creek.



GEOPOLITICS

ii SIACHEN GLACIER DISPUTE

- 1 The Siachen Glacier is one of the most inhospitable and glaciated regions in the world. It is a triangular bit of land between Pakistan occupied Kashmir and part ceded by Pakistan to China.
- 2 The dispute arose over differing interpretations of the 1949 ceasefire, and 1972 Simla agreement, that left a portion of the ceasefire line in Kashmir undefined. In 1984, Pakistan reinterpreted the agreement to claim the area beyond Saltoro Ridge beyond Siachen.
- 3 Under the Karachi Agreement of 1949 it was clear that Siachen Glacier formed part of Baltistan in the Northern Areas of Pakistan. Pakistan's occupation of heights along the LoC allow the Pakistan army to oversee the whole supply route into Siachen.
- 4 For any resolution of LoC by the US or the western powers, India to vacate Siachen, otherwise there is no recognised LoC left.



iii

BALUCHISTAN

GEOPOLITICS

GEOPOLITICAL IMPORTANCE OF THE REGION

- 1** Baluchistan is the largest province of Pakistan, covering 44 percent of the total area.
- 2** The province is rich in natural resources like oil, gas, copper and gold; the economy is dominated by its natural gas fields.
- 3** Its location is extremely strategic as the province shares borders with Punjab, Sindh, FATA, as well as Afghanistan and Iran.



iii

BALUCHISTAN

GEOPOLITICS

GEOPOLITICAL IMPORTANCE OF THE REGION

- 4 Gwadar Port in Balochistan is of immense importance to Pakistan.
- 5 Balochistan's energy resources are vast and India's emerging economy needs enormous energy resources to compete with China and other countries.
- 6 China is militarising Balochistan's coastal belt to have a better stranglehold on India.



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BALUCHISTAN

GEOPOLITICS

MOST BACKWARD REGION

- 1 In spite of natural resources, it is the most backward region in Pakistan.
- 2 Baloch people are ethnically, culturally and socially different from the rest of Pakistan and feel exploited at the hands of the dominant Punjabis.
- 3 The people of this region feel Islamabad pursues exploitative policies and China is increasing its footprints in the region. The people resent these activities and hence there is a political turmoil in the region.



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BALUCHISTAN

GEOPOLITICS

INDIA'S ROLE

- 1 Pakistan has been accusing India of running terrorist activities and helping Baloch nationalist to fight against Pakistani establishment
- 2 Adviser to Pakistan PM said that India was trying to divert global attention from the “tragedy in India-held Kashmir”.
- 3 Pakistani journalists warned Baloch nationalists not to take India's support.
- 4 Various Baloch nationalist organisations in Balochistan and those based in USA and Europe have welcomed PM Modi's support for Baloch nationalism.
- 5 India feels it will put the country in a better position while dealing with Pakistan and it would also be a geopolitical investment by India in the region.



GEOPOLITICS

iv

GILGIT-BALISTAN

1 Gilgit-Baltistan is being controlled administratively from Islamabad since 1947, but it continues to remain a disputed region between India and Pakistan, and hence has not been officially integrated in Pakistan.

2 The people of the region have been demanding the status of Pakistani citizens with constitutional rights.

3 Pakistan had changed the legal status of Gilgit-Baltistan first in 2009 by introducing Gilgit Baltistan Empowerment and Self-Governance Order-2009 which changed its name from Northern Areas to Gilgit-Baltistan.

4 Under this arrangement, it was given a province-like status with the appointment of a chief minister and governor for self-rule. Thus, constitutionally it still remained out of Pakistan.



GEOPOLITICS

iv

GILGIT-BALISTAN

5 In May 2018, the Gilgit-Baltistan Order-2018 was passed, replacing the earlier order. It was seen as another attempt towards incorporating the disputed region as its fifth province.

6 In May 2020, Supreme Court of Pakistan allowed elections to be held in Gilgit Baltistan and establish a caretaker government.

7 India rejected all such attempts to bring material changes in Pakistan occupied areas of the Indian territory of Jammu & Kashmir.

8 The MEA responded to it that the entire Union Territories of Jammu & Kashmir and Ladakh, including Gilgit and Baltistan are an integral part of India .

9 The Government of Pakistan or its judiciary has no right on these territories



INTERNATIONAL PLAYERS

a CHINA- PAKISTAN AXIS

- 1 China supports Pakistan with military, economic and humanitarian support.
- 2 China's support to Pakistan in the Nuclear Suppliers Group is a concern for India.
- 3 China Pakistan Economic Corridor CPEC is a part of the One Belt One Road initiative of China. China aims to build a network of highways, railways and pipelines in construction, energy, industrial and infrastructure development.



INTERNATIONAL PLAYERS

a

CHINA- PAKISTAN AXIS

- 4 CPEC can help China resolve its Malacca dilemma. It will give China access to Persian Gulf region and West Asia.
- 5 But the people of Pakistan do not favour China's expansionist policies. Moreover, Pakistan's foreign reserves are depleting.
- 6 Alternatively, India can provide Asia-Africa Growth Corridor. It would connect East Asia, Southeast Asia, South Asia with Africa and Oceania.



INTERNATIONAL PLAYERS

b

PAKISTAN AND SAUDI ARABIA

The closeness between Pakistan and Saudi Arabia is a cause of concern for India.

- 1 In 2019, Saudi Arabia announced \$20 billion in infrastructure and energy investments to Pakistan, to help it during financial crisis.
- 2 Pakistan is a security partner, a reliable Muslim ally for the Saudis. Hence, the deals with Pakistan are more strategic than economic.
- 3 When Pakistan was hit with international sanctions for its nuclear tests in the 1990s, Saudi Arabia helped with oil supplies and funds.
- 4 70,000 Pakistani nationals serve Saudi Arabia's armed forces and provide training and assistance to the Saudi military.

INTERNATIONAL PLAYERS

b PAKISTAN AND SAUDI ARABIA

- 5** In 2016, Pakistan participated in the “North Thunder” military exercise with Saudi Arabia and its allies as well as joint exercises between the special forces.
- 6** In 2017, Pakistan joined the Saudi-led Islamic Military Counter Terrorism Coalition, which brings together the militaries of 41 Islamic countries to counter terrorist groups and their activities in the Muslim world.
- 7** A strong relationship with Saudi Arabia would prevented India from gaining the upper hand in the Middle East.
- 8** Renewed Saudi-Pakistan ties have not been well received in Iran, Pakistan’s neighbour and Saudi’s arch-rival in the Middle East. And Iran is India’s close friend and partner.

ACTIVITIES OF NON-STATE ACTORS

TERROR ATTACKS

- 1 India – Pakistan relations have been marked by wars initiated and unending Pakistan-sponsored terrorism.
- 2 Pakistan seeks revenge for having lost wars, for the breakup of their country in 1971. Increasingly, this revenge takes the form of terror in Kashmir that has spread out into other parts of India.
- 3 This obsession has meant converting Pakistan into a truly Islamic state equipped with nuclear weapons that they threaten to use.
- 4 Jihad (a fight against enemies of Islam) as a tool to gain strategic depth was born in the aftermath of Bangladesh's creation in Pakistan.



ACTIVITIES OF NON-STATE ACTORS

TERROR ATTACKS

- 5 Terror groups like JEM are cultivated and patronized by the Pakistani establishment, as strategic tools to accomplish their goals against India.
- 6 These groups are referred to as 'non-state actors' to absolve the Pakistani government of any responsibility.
- 7 In 2019, Imran Khan told the US admitted Pakistan still had about 30,000 to 40,000 trained terrorists who had fought in some parts of Afghanistan or Kashmir.
- 8 He also admitted that 40 different militant groups were operating from Pakistan, and that past governments had not admitted this to the U.S.



ACTIVITIES OF NON-STATE ACTORS

- India has found Pakistan guilty of sponsoring terrorism acts against India.
- This included the 1993 Mumbai blasts, 2001 Parliament attack and 26/11 Mumbai attack.

i 26/11 MUMBAI ATTACKS

- 1 On November 26, armed gunmen open fired on civilians at several sites in Mumbai and prompted an almost three-day siege of the Taj Hotel in Mumbai.
- 2 More than 160 people were killed in the attacks. In the wake of the attacks, India broke off talks with Pakistan.
- 3 Talks were resumed with Pakistani Prime Minister Gilani and Indian Prime Minister Manmohan Singh meeting on the side-lines of a Non-Aligned Movement (NAM) summit in Sharm el-Sheikh, Egypt.

- 4 The Pakistani government admitted that the Mumbai attacks had been partly planned on Pakistani soil.



ACTIVITIES OF NON-STATE ACTORS

ii URI ATTACKS

- 1 On September 18, 2016, four heavily armed terrorists crossed the Line of Control (LoC) and launched a massive grenade attack military camp in the Uri town of Jammu and Kashmir
- 2 Armed with these special grenades, the terrorists exploded the fuel depot. The Uri attack killed 18 soldiers and injured more than 30 others.
- 3 The forces managed to gun down all four terrorists, but by then they had inflicted heavy loss upon the Indian Army.
- 4 The Uri terror attack was executed at a strategically significant time. It was a time when there was movement of troops in the region.
- 5 One battalion had completed its two-year tenure and was moving out, while another was coming in to a new location.



ACTIVITIES OF NON-STATE ACTORS

INDIA'S RESPONSE

- 1** The scale of the Uri terror attack was such that the government had no option other than responding strongly.
- 2** The government allowed the Army to carry out "surgical strikes" against terror launch pads on and along the Line of Control.
- 3** The Army said it was able to destroy massive infrastructure that was being routinely used as terror launch pads by Pakistan along the LoC to destabilise law and order in Kashmir.



ACTIVITIES OF NON-STATE ACTORS

iii PULWAMA ATTACK AND BALAKOT STRIKES

1 On 14th February 2019, forty Indian troops of CRPF (Central Reserve Police Force) were killed in an suicide attack by JEM (Jaish-e-Mohammed) in Pulwama district, Kashmir. It resulted in a wave of anger amongst Indian masses.

2 In response, Indian government launched an air-strike in the early hours of 26th February, 2019.

3 Twelve Mirage 2000 jets of the Indian Air Force crossed the Line of Control between India and Pakistan and dropped bombs, and destroyed a large training and recruitment centre of JEM in Balakot (Pakistan)



ACTIVITIES OF NON-STATE ACTORS

iii PULWAMA ATTACK AND BALAKOT STRIKES

4 On 27th February, Pakistani air-force jets intruded into Indian air-space. In the air-battle between Pakistani and Indian fighter jets, an Indian MIG-21 was shot down and the Pilot captured by the Pakistani authorities.

5 He was subsequently released by the Pakistani government after spending a couple of days in their custody.

6 The Pakistani government claimed that no substantial damage was done by the Indian air-strikes at Balakot.



ECONOMIC

- 1 India Pakistan trade is often affected because of political decisions and anti-state activities
 - Following the Pulwama terror, India withdrew the Most Favoured Nation (MFN) status to Pakistan, which was granted in 1995.
- 2 The reason for diminishing India-Pakistan bilateral trade significance may be attributed to informal trade between the two countries.
- 3 Informal trade between India-Pakistan is generally done
 - re-routing trade through a third country
 - illegal trade through land borders.

The informal exports from India to Pakistan constitute mainly readymade garments, cosmetics and jewellery, spices, livestock, drugs and pharma, machinery mainly textiles, chemicals, tyres and informal imports from Pakistan to India includes mainly cloth, tobacco products, dry fruits, leather products mainly footwear.



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suggestions@learningspace.in

To Contact us:

info@learningspace.in

For Information:

info.learningspacedigital@gmail.com

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0866 244 44 72

98499 42299

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